

The nation pays taxes at the law's command, it honours the crown, and is obedient to the orders of the government, because the law command them to do so. Just the same as the subject obey the law the king also should obey the law. If law gives a shipowner the right to recover damages against the crown, and the court decides a case in favour of the shipowner, that decision should be executed. In such case the crown cannot say that he will not obey the order of the court in disregard of the law of the land.

As we know, the English people have petition of right, and we see many cases in which judgments have been pronounced against the crown; but we have never heard of the execution of judgment prevented by the crown by force. Therefore if the law be changed so as to give the shipowner the remedy before the court against the crown in certain cases, the decisions of that court in those cases will be carried out. The English nation is noted for its law-abiding spirit, the crown as well as the people.

In Germany, too, even in the Imperial *régime* an action could be brought by an individual against the government. It was allowed in certain cases by the

of the oath as taken before the Accession Declaration Act, 1910, were to the following effect :—

“Will you solemnly swear to govern the people of this realm according to the Statutes of Parliament agreed on and the respective laws and customs of the same?”

“A. I solemnly promise so to do.”

“Will you to the best of your power cause law and justice in mercy to be executed in all your judgments?”

“A. I will.” (D. Chalmers and C. Asquith's Constitutional Law, 1922, p. 39.)

law; and the sentences of the courts ordering the government to pay damages to the plaintiff, or to perform a contract which it had entered into were carried out without any hindrance.

The law in our country is nearly the same on this point. The Japanese government is often proceeded against before the court by individuals; at that time it is represented there by the minister of the department of state concerned. The author of this book once pleaded himself against the state, represented by the minister of railways, before the Tokyo District Court about the requisition of his own land, and won, last year, and the case is now pending in the Tokyo Appeal Court.

Thus in some countries the law gives remedies to individuals against the state in certain cases, and they are given in the courts according to the law; and we think if the law gives remedies to individuals in some cases, it can give them also in other cases.

Such is the case in almost every constitutional monarchy, and needless to say of republics and democratic states.

EMBARRASSMENT OF STATE ADMINISTRATION.

The second objection to giving a right of action to individuals against the state is that, if this were allowed, it would involve the state in perpetual embarrassment, from the administrative point of view.

This is a very practical reason, often given by

official circles supported by legal writers. Story once said that the government does not undertake to guarantee to any persons the fidelity of any of the officers or agents whom it employs, since that would involve it, in all its operations, in endless embarrassments, and difficulties, and losses, which would be subversive of the public interests.

If a law which gave to the injured party a substantial remedy were really subversive of the public interest, we would not propose that such a law should be made, even though we sympathised with the injured party; but if there be no fear of the subversion of the public interest, we should certainly give a remedy in accordance with justice and good policy.

Although some writers think that such a law would involve the government in endless embarrassment, we have grave doubt on the subject. Merchants have keen eye to economy, and do not come to the court for motives of mere pleasure or vengeance; they resort to the court only after they have ascertained that they have an undoubted right of action, and right of recovery; or, at least, that they have ground for thinking so. The fact that, in spite of their having a right of action against the master, mates, or other wrong-doers of the ship, they do not proceed against those persons shows the practical view they take. Moreover, statistics of the Shipping Gazette, Nautical Magazine, Fair Play, Syren and others show the law suits between private shipowners even are not so numerous as we might expect.

The action against the state for the acts of public ships would be very few even if the law gave the right of such action to individuals. Those who take charge of the public ships are well qualified and able. The naval officer, for instance, enters the naval service after having passed many severe examinations, and is promoted to responsible positions only after many years of experience. The discipline on board men-of-war is fully secured and maintained by Crown regulations and Admiralty instructions, which are enacted from time to time, with a view to maintaining the discipline in the navy in the way thought most desirable. The men who serve under the officers are very obedient, and are, perhaps, the most satisfactory class of employés that exist. We can, therefore, say without hesitation that the cases in which the state is proceeded against for negligence of those servants of its own will be very few; and that though the law gives a right of action in those cases to the injured individual it would not involve the state in perpetual embarrassment.

If someone says, against this presumption, that the liability of the state would surely involve it in endless embarrassment, does it not amount either to saying that the knowledge, experience, and ability of naval and other public officers cannot be relied upon, or to asserting the inefficiency and incompetence of the government to do justice to its people? We do not think that the government of civilised nations would rely on such illogical reasoning to defend its immunity from liability.

EMBARRASSMENT OF PUBLIC FINANCE.

Again, it is said that if the state should have to pay the damages in such cases, this would be a very large sum.

Admitting the government would pay in such cases a very large sum, still it should be given if it is in accordance with justice. The government of every country pays an enormous sum for education, because it is necessary for the advancement of civilisation; it pays much to protect art and literature; its expense amounts to thousands of millions for the execution of poor law, labour regulations and many charitable purposes. If so, why do they not give indemnities to the individual who suffered specially by the acts of the public servants of the state?

This argument is on the assumption that the government would pay in such cases very large sums; but we do not think such a presumption is in accordance with the fact. We have seen above that law suits for damages against the state are not so common as we might expect. Then the fewer the law suits the lesser the amount of damages to pay for them. In England, where the Admiralty pays for the negligence of its officers, no such enormous sums as are suggested are paid. The annual estimate and account made public by the government give us an idea of what this amount is. The English government, in future, might pay more than ever, and some states might pay more than England, but whatever sum they may pay, there would be no disorganisation of public finances.